LEONARD MUPINI
versus
NHATHANIEL TAFADZWA MUPINI
and
REGISTRAR OF DEEDS N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 28 October 2025 and 27 November 2025

Opposed Matter

S Chirome, for the Applicant
G Madzoka, for 1st Respondent
No appearance for 2nd Respondent

MAXWELL J: Applicant approached the court seeking confirmation of revocation of a donation *intervivos.* Applicant states in the Founding Affidavit that first Respondent is his grandson. Applicant has ten children, eight daughters and two sons. In 1981 he acquired stand 1411 Malbereign Township situate in the district of Salisbury measuring 1038 square metres. He had been residing there with his deceased wife, first Respondent's grandmother. He is failing to take his current wife to stay at the property.

Out of love, kindness and benevolence, he donated the property to his grandson, first Respondent in 2023. Consequently, the property was transferred to the first Respondent by virtue of a deed of transfer Registration Number 3425/ 2024 dated 7 August 2024. According to Applicant, the common understanding was that he would enjoy a usufruct over the property for his entire life and that is the reason why he remained in occupation after the transfer in favour of first Respondent.

A series of events led him to revoke the donation which he did through a letter dated 9 April 2025. Firstly, the first Respondent instituted eviction proceedings against Applicant's wife and minor children in Hre ECG 4513/24 at Harare Magistrate (Civil) Court. That conduct demonstrated ingratitude of the highest magnitude, was malicious and was calculated to torment Applicant and his family. First Respondent's conduct is not driven by any need at all as he is accommodated at his father's house. Secondly, the first Respondent is subjecting him to emotional and psychological trauma at a time when he is in ill health. He visited him

in hospital and pestered him to disclose why he engaged legal practitioners. Applicant needs home-based care and regular, medical checkups. His wife is the best person to assist him but she cannot do so as first Respondent does not want to see her staying with Applicant.

Around August 2024 he suffered a stroke and was admitted in hospital. After being discharged first Respondent, his parents and his siblings visited him and caused a stir. first Respondent's father assaulted him yet he was visibly sick. His wife and minor children had to flee to avoid being assaulted. He subsequently obtained a protection order against first Respondent's parents under case number Hre DV 2114/24. Despite the existence of the protection order, verbal abuse continued. Applicant allowed first Respondent's father to take over his insurance brokering company out of love. Currently the huge medical bills leave him struggling to look after his wife and the minor children. In his view, first Respondent is paying his kindness with evil to him and his family. Gross ingratitude is written all over his deeds. He prays for the confirmation of the revocation of the donation.

In opposing the application, first Respondent raised a preliminary point that Applicant lacks legal standing due to mental incapacity as there is a pending court application for the appointment of a curator bonis under case number HCHF 1715/25. On the merits he disputed allegations of gross ingratitude. He acknowledged the lawful donation and transfer of the property. He submitted that he has not interfered with the Applicant's usufruct or peaceful occupation of the property. He avers that he has acted lawfully and responsibly.

First Respondent acknowledged receiving the revocation letter. He however disputed the validity of the revocation. He stated that allegations in the letter are unsubstantiated and malicious. They lack credible evidence to support claims of gross ingratitude or ill-treatment. He asserted that he has consistently upheld his responsibilities towards the Applicant, including contributing to his welfare and medical expenses. First Respondent dissociated himself from the summons filed under Hre ECG 4513/24. He indicated that he did not instruct the legal practitioners responsible for drafting the summons and has never met them. He avers that Applicant continues to reside with his wife who he has never evicted or threatened with eviction. First Respondent disputes causing emotional and psychological trauma to the Applicant. He stated that he visited him out of genuine concern and has been financially supporting Applicant's medical needs thereby demonstrating goodwill. He pointed out that events involving his father do not implicate him and he should not be held accountable for his father's actions. He refutes claims of gross ingratitude and asserts that

both he and his father have been actively supporting the Applicant, including covering medical bills and providing general care.

In answer. Applicant attached a report from his doctor confirming his mental status as normal. He insisted that first Respondent has interfered and continues to interfere with his peaceful occupation of the property. He insisted that first Respondent sought to evict his family from the property.

In *Mukundu* v *Mukundu* HH 228/17 TSANGA J stated

> "Whilst generally a donation is irrevocable, there are exceptions to this general rule particularly where a donee has shown ingratitude. Under Roman Law, the Institutes of Justinian refers to ingratitude as a ground for revocation in Inst 27 2:
>
> " It is to be observed, however, that even where gifts have been completely executed we have by our constitution under certain circumstances enabled donors to revoke them, but only on proof of ingratitude on the part of the recipient of the bounty; the aim of this reservation being to protect persons, who have given their property to others, from suffering at the hands of these, latter injury or loss in any of the modes detailed in our constitution-trans 1 Moyle The Institutes of Justinian (1906).
> Examples of ingratitude include personal violence against the donor; treacherous deeds causing the donor great pecuniary losses which extensively diminished his estate; exposure to danger threatening the donor's life, and a breach of written or oral undertakings of the donee. Examining traditional services of revocation of a donation under Roman and Dutch Law Susan Scott for example summarizes the modern position as follows
> 'In modern terms the position can be stated as follows;
> Ingratitude is a ground for revocation of donations. The examples given in the Code and explained on by Roman- Dutch authors indicate that the grounds of ingratitude are serious. Infringements of a person's personal rights, personality rights and property rights. It is also clear that in all these situations the donee must have acted with intent."
>
> See also the cases of *Malaba* v *Malaba* HB 14/05 and *Taylor* v *Taylor* SC 70/07 in which a donations was declared revocable on the ground of ingratitude."

The question is, has the Applicant proved ingratitude on the part of the donee? The grounds for the revocation will be considered in answer to that question. Three grounds for revocation are stated in a letter dated 9 April 2025 written by Applicant's legal Practitioners. They are.

(i) Seeking to evict the donor's wife and her children from the house thereby also indirectly seeking to evict the donor therefrom.

(ii) Working together with your father to disturb the donor's peaceful occupation of the house using violent conduct.

(iii) Subjecting the donor to emotional and psychological trauma at a time the donor was and still is ailing."

On 11 April 2025 first Respondent's legal practitioners responded to the revocation letter. In para 3 to 6 of the letter they stated.

> "3 Its news to our client that there were summons issued for eviction for his grandmother as he has never instructed any lawyers to do that. We challenge you to adduce such evidence/ mandate given to the lawyers who are attending to the eviction summons.
> 4. Our client has never been violent or disturbed his grandfather's peaceful occupation of the property as he regards him highly as his "grandfather" We challenge you to provide evidence of such violent conduct that has been reported to the police or where our client has been charged by the criminal judicial system in the country. It is a sad day that you chose to grand stand and attack our client on baseless allegations that do not have any shred of evidence whatsoever.
> 5. The only confrontation that is worth mentioning is the one involving our client's father and his father in which our client had no role. Our client and his father are two separate persona and such he is not accountable for his father's actions but to his own actions.
> 6. Our client has never subjected his grandfather to any emotional or psychological traumas this is only a figment of imagination by those that are trying to push words down the donor's throat and trying to destroy the good relations that exist between the grandfather and our client."

In proving that first Respondent sought to evict the donor's family, Applicant attached summons commencing action under reference Hre ECG 4513/24. First Respondent disputed instructing the legal practitioners who filed the summons to do so. His signature does not appear on any of the pages of the summons. The response in the letter dated 11 April 2025 ought to have guided the Applicant on the proper procedure to follow.

Applicant insists that first Respondent is seeking to evict his family. First Respondent is disputing it. A dispute of fact exists which cannot be resolved on the papers. Applicant ought to have adduced evidence of the mandate given to the preparer of the summons by the first Defendant.

The first ground for the revocations therefore remains unproven.

The second ground accuses the first Respondent of working with his father to disturb the donor's peaceful occupation of the house using violent conduct. Applicant attached a protection order in which the respondents are Innocent Mupini and Pamhidzai Mupini, the first Respondent's parents. The first Respondent is an adult and if he was involved surely, he ought to have been cited. Again, in the letter of 11 April 2025 he challenged the Applicant to produce evidence of his working together with his father to that end. As in the first ground for the revocation, a dispute of fact exists which cannot be resolved on the papers. The second ground for the revocation also remains unproven.

The last ground accused the first Respondent of subjecting Applicant to emotional and psychological trauma at a time he was and still is ailing. Again, this is disputed by the first Respondent. The dispute necessitates the adducing of evidence to prove the allegations.

The application procedure is inappropriate in the circumstances of this case. The Applicant ought to have known that disputes of facts would arise. None of the grounds stated as the basis for the revocation were proved. The revocation can therefore not be confirmed.

The following order is appropriate

The application be and is hereby dismissed with costs.

MAXWELL J:.....

Messrs Chirome & Partners, Applicant's legal practitioners
Mataka Legal Practice, 1st Respondent's legal practitioners